

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.:

YUDY DIAZ de MARTINEZ and RUNALDO MARTINEZ,

Plaintiffs,

*Plaintiff designates
Bronx County as
the place of trial*

-against-

THE CITY OF NEW YORK, P.O. DENIS REGIMBAL
and P.O. "JOHN DOE", the first and last names
fictitious and unknown,**S U M M O N S**

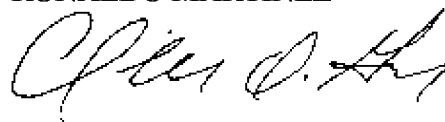
Defendants.

*The basis of the
venue is the
location of occurrence*

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Hicksville, New York
February 5, 2018BERGMAN, BERGMAN, FIELDS &
LAMONSOFF, LLP
Attorneys for Plaintiffs
YUDY DIAZ de MARTINEZ and
RUNALDO MARTINEZBy: Clifford Gabel
801 South Broadway
Hicksville, New York 11801
(516) 739-2220

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. DENIS REGIMBAL
c/o NYPD 44th Precinct
2 E. 169th Street
Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

YUDY DIAZ de MARTINEZ and RUNDALDO MARTINEZ, Index No.:

Plaintiffs,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. DENIS REGIMBAL
and P.O. "JOHN DOE", the first and last names
fictitious and unknown,

Defendants.

-----X

Plaintiffs YUDY DIAZ de MARTINEZ and RUNALDO MARTINEZ,
complaining of the defendants, by their attorneys, BERGMAN, BERGMAN, FIELDS &
LAMONSOFF, LLP, hereby set forth and allege, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times hereinafter mentioned and on November 30, 2016, plaintiffs
were and still are residents of the County of Bronx, City and State of New York.

2. At all times hereinafter mentioned and on November 30, 2016, defendant
THE CITY OF NEW YORK (the "CITY") was and still is a domestic municipal corporation,
duly organized and existing under and by virtue of the Laws of the State of New York.

3. At all times hereinafter mentioned and on November 30, 2016, defendant
P.O. DENIS REGIMBAL (hereinafter referred to as "REGIMBAL") was and still is a resident of
the City and State of New York.

4. At all times hereinafter mentioned and on November 30, 2016, defendant
P.O. "JOHN DOE", the first and last names fictitious and unknown (hereinafter referred to as
"JOHN DOE"), was and still is a resident of the City and State of New York.

5. Plaintiffs have complied with all the conditions precedent to the commencement of the within action against defendant the CITY.

6. On February 24, 2017, Plaintiffs electronically served a Notice of Claim within ninety (90) days of the date that the within causes of action were caused to accrue; thirty (30) days have elapsed and the claims advanced therein remain unpaid and unadjusted; plaintiffs testified at an oral examination pursuant to General Municipal Law Section 50-h on August 28, 2017, and this action is being commenced within one (1) year and ninety (90) days of the date that the within causes of action were caused to accrue.

7. At all times hereinafter mentioned and on November 30, 2016, and for some time thereafter, defendant REGIMBAL was a New York City Police Officer on duty and working in the scope and course of his employment as a New York City Police Officer and was employed by defendant the CITY.

8. At all times hereinafter mentioned and on November 30, 2016, and for some time thereafter, defendant "JOHN DOE", the first and last names fictitious and unknown, was a New York City Police Officer the full name of whom is unknown, on duty and working in the scope and course of his employment as a New York City Police Officer and was employed by defendant the CITY.

9. At all times hereinafter mentioned and on November 30, 2016, and for some time thereafter, plaintiff YUDY DIAZ de MARTINEZ was assaulted, battered, and otherwise the victim of an excessive use of force by the defendants herein, their agents, servants and/or employees.

10. At all times hereinafter mentioned and on November 30, 2016, and for some time thereafter, plaintiff YUDY DIAZ de MARTINEZ was assaulted, battered and otherwise the victim of an excessive use of force without justification, cause or excuse.

11. The aforementioned assault, battery and excessive use of force on plaintiff YUDY DIAZ de MARTINEZ took place at 287A East 170th Street, in the County of Bronx, City and State New York, and other locations wherein the plaintiff YUDY DIAZ de MARTINEZ was held against her will by the defendants, their agents, servants and/or employees.

12. The aforementioned assault, battery and excessive use of force of the plaintiff YUDY DIAZ de MARTINEZ was carried out by police officers and/or other servants, agents and/or employees of defendant the CITY.

13. By reason of the foregoing, plaintiff YUDY DIAZ de MARTINEZ was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

14. This action falls within one or more of the exceptions set forth in CPLR Section 1602, involving intentional actions, the defendant and/or defendants having acted in reckless disregard for the safety of others and/or a non-delegable duty.

15. By reason of the foregoing, plaintiff YUDY DIAZ de MARTINEZ has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiff repeats, reiterates, and realleges, each and every allegation set forth in paragraphs 1 through 15 with the same force and effect as though fully set forth at length herein.

17. All of the aforementioned acts committed by police officers, servants, and/or other employees of the defendant the CITY were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the CITY.

18. Defendant the CITY was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of certain police officers, agents, servants and/or other employees, including, but not limited to defendants REGIMBAL and JOHN DOE, who were employed by defendant the CITY.

19. By reason of the foregoing, plaintiff YUDY DIAZ de MARTINEZ was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

20. This action falls within one or more of the exceptions set forth in CPLR Section 1602, involving the defendant and/or defendants having acted in reckless disregard for the safety of others and/or a non-delegable duty.

21. By reason of the foregoing, plaintiff YUDY DIAZ de MARTINEZ has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiff repeats, reiterates, and realleges, each and every allegation set forth in paragraphs 1 through 21 with the same force and effect as though fully set forth at length herein.

23. On November 30, 2016, plaintiff YUDY DIAZ de MARTINEZ was arrested by a police officer and/or police officers employed by the New York City Police Department.

24. On November 30, 2016, plaintiff YUDY DIAZ de MARTINEZ was arrested by a police officer or police officers from the 44th Precinct.

25. On November 30, 2016, plaintiff YUDY DIAZ de MARTINEZ was arrested by defendant P.O. REGIMBAL.

26. On November 30, 2016, plaintiff YUDY DIAZ de MARTINEZ was arrested by defendant P.O. JOHN DOE.

27. On November 30, 2016, plaintiff YUDY DIAZ de MARTINEZ was arrested at 287A East 170th Street, Bronx, New York.

28. On November 30, 2016, plaintiff YUDY DIAZ de MARTINEZ was arrested without probable cause.

29. On November 30, 2016, plaintiff YUDY DIAZ de MARTINEZ was arrested without an arrest warrant.

30. On November 30, 2016, plaintiff YUDY DIAZ de MARTINEZ was arrested, taken into police custody and detained against her will.

31. The arrest of plaintiff YUDY DIAZ de MARTINEZ on November 30, 2016, took place at 287A East 170th Street, Bronx, New York, and other locations wherein she was held against her will by the defendants, their agents, servants and/or employees.

32. The aforementioned arrest and imprisonment of plaintiff YUDY DIAZ de MARTINEZ was carried out by police officers and/or other servants, agents and/or employees of defendant the CITY.

33. The aforementioned arrest and imprisonment of plaintiff YUDY DIAZ de MARTINEZ amounts to a false arrest and false imprisonment, since defendants arrested plaintiff without a warrant, without probable cause and without legal authority.

34. By reason of the foregoing, plaintiff YUDY DIAZ de MARTINEZ was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was deprived of her freedom; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

35. This action falls within one or more of the exceptions set forth in CPLR Section 1602, involving intentional actions, the defendants having acted in reckless disregard for the safety of others and/or a non-delegable duty.

36. By reason of the foregoing, plaintiff YUDY DIAZ de MARTINEZ has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates, and realleges, each and every allegation set forth in paragraphs 1 through 36 with the same force and effect as though fully set forth at length herein.

38. This cause of action is predicated on violations of plaintiff's civil rights protected under the United States Constitution and actionable under 42 U.S.C. 1981, 1983, 1984, 1985, 1986 and 1988.

39. By reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to assault, battery, excessive force, false arrest, malicious prosecution, and the negligence of the defendants and defendant the CITY in the negligent hiring, negligent retention and negligent training of certain of its employees and/or police officers, plaintiff YUDY DIAZ de MARTINEZ was caused to have her civil rights violated, and more particularly those rights, privileges and immunities guaranteed by 42 U.S.C. 1983 et seq., the 4th Amendment, 5th Amendment, 8th Amendment and 14th Amendment of the United States Constitution insofar as being deprived of her right to due process, the right to be free of unreasonable search and seizure and the right to be free from cruel and unusual punishment.

40. By reason of the foregoing, plaintiff YUDY DIAZ de MARTINEZ was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo

hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

41. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, the defendant and/or defendants having acted in reckless disregard for the safety of others and/or a non-delegable duty.

42. By reason of the foregoing, plaintiff YUDY DIAZ de MARTINEZ has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

**AS AND FOR A FIFTH CAUSE OF ACTION
FOR LOSS OF SERVICES ON BEHALF OF
PLAINTIFF RUNALDO MARTINEZ**

43. Plaintiffs repeat, reiterate, and reallege, each and every allegation set forth in paragraphs 1 through 42 with the same force and effect as though fully set forth at length herein.

44. At all times mentioned herein and on November 30, 2016, plaintiff RUNALDO MARTINEZ was the spouse of plaintiff YUDY DIAZ de MARTINEZ, and as such, was entitled to the society, services and consortium of his spouse, plaintiff YUDY DIAZ de MARTINEZ.

45. By reason of the foregoing acts and omissions of defendants, as described in the causes of action above, plaintiff RUNALDO MARTINEZ was deprived of the society, services and consortium of his spouse, plaintiff YUDY DIAZ de MARTINEZ, and shall forever be deprived of said society, services and consortium.

46. By reason of the foregoing, plaintiff RUNALDO MARTINEZ was damaged in an amount in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs YUDY DIAZ de MARTINEZ and RUNALDO MARTINEZ demand judgment against the defendants, on the First, Second, Third, Fourth and Fifth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York together with interest, costs and disbursements.

Dated: New York, New York
February 5, 2018

Yours, etc.

BERGMAN, BERGMAN, FIELDS &
LAMONSOFF, LLP
Attorneys for Plaintiffs
YUDY DIAZ de MARTINEZ and
RUNALDO MARTINEZ



By: Clifford Gabel
801 South Broadway
Hicksville, New York 11801
(516) 739-2220

ATTORNEY'S VERIFICATION

CLIFFORD GABEL, an attorney admitted to practice law in the State of New York, affirms the following under the penalties of perjury:

I am associated with the law firm of Bergman, Bergman, Fields & Lamonsoff, LLP, the attorneys of record for the plaintiffs in the within action. I have read the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief, and as to those matters, I believe it to be true. This verification is made by me and not by the plaintiffs because the plaintiffs do not reside in the county where Bergman, Bergman, Fields & Lamonsoff, LLP, maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiffs and contents of the file maintained by Bergman, Bergman, Fields & Lamonsoff, LLP.

Dated: New York, New York
February 5, 2018



CLIFFORD GABEL

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

YUDY DIAZ de MARTINEZ and RUNALDO MARTINEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, P.O. DENIS REGIMBAL and P.O. "JOHN DOE", the first and last names fictitious and unknown,

Defendants.

SUMMONS and VERIFIED COMPLAINT

BERGMAN, BERGMAN, FIELDS & LAMONSOFF, LLP
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